

§ 9.17 Voluntary and informal admissions; suitability.

(a) In order for a person to be suitable for admission to a hospital as a voluntary or informal patient, or for conversion to such status he must be notified of and have the ability to understand the following:

1. that the hospital to which he is requesting admission is a hospital for the mentally ill.

2. that he is making an application for admission.

3. the nature of the voluntary or informal status, as the case may be and the provisions governing release or conversion to involuntary status.

(b) The department shall have the power to examine the patients admitted pursuant to this section and determine if they belong to the voluntary or informal class. If it be determined that any such patient does not belong to the voluntary or informal class, the department shall determine whether the patient shall be discharged or whether procedures shall be commenced for the admission of such patient to a hospital pursuant to other sections of this article. The decision of the department shall be forthwith complied with by the director or person in charge of any such hospital. Any failure to conform to the requirements of this section shall be considered a sufficient cause for revocation of an operating certificate theretofore issued to a hospital.